

US FTC Advertising & Health Claims Practical Examples

Example 1 Scientific-Looking Advertising Can Create an Implied Claim

FTC Source: Health Products Compliance Guidance Example 1

Scenario:

A weight-loss product advertisement shows doctors in white lab coats, microscopes, molecular structures, and stacks of medical journals.

What the FTC says it may communicate:

Even though the advertisement does not expressly say clinically proven, these images can create an implied impression that the product has been clinically proven effective for weight loss.

Ayurvedic Application:

An Ayurvedic supplement advertisement showing doctors, laboratory equipment, clinical charts, and scientific journals could similarly imply that the product has been scientifically or clinically proven.

Compliance Trigger:

Implied health claim / scientific substantiation / visual claims.

Example 2 Images Can Imply Disease-Prevention Benefits

FTC Source: Health Products Compliance Guidance Example 2

Scenario:

A children's nutritional drink advertisement shows a straw from the drink box forming a barrier between one child and another child who is sneezing.

What the FTC says it may communicate:

The image can imply that the product helps protect children from colds or airborne infections.

Ayurvedic Application:

An herbal drink advertised with images of people surrounded by a protective shield while viruses or sick people appear nearby could imply that the product prevents infection, even if the words prevents disease never appear.

Compliance Trigger:

Implied disease-prevention claim / imagery / consumer interpretation.

Example 3 Expert Usage Can Imply a Health Benefit

FTC Source: Health Products Compliance Guidance Example 3

Scenario:

An advertisement states that 90% of cardiologists regularly take a vitamin supplement.

What the FTC says it may communicate:

The advertisement not only makes the express claim about cardiologists' usage but may also imply that the product provides a benefit for the heart.

Ayurvedic Application:

An Ayurvedic supplement advertisement stating that 80% of Ayurvedic doctors use this product could potentially communicate an additional implied message that the product has a health benefit.

Compliance Trigger:

Expert endorsement / implied efficacy claim / professional usage.

Example 4 Scientific Charts Can Create an Unsupported Product Claim

FTC Source: Health Products Compliance Guidance Example 4

Scenario:

An infant formula advertisement shows a chart from a pediatric journal demonstrating that babies' crying decreases as they age. The chart does not actually demonstrate that the formula causes the reduction.

FTC principle:

Using unrelated scientific information can create an implied impression that the product itself produces the claimed result.

Ayurvedic Application:

An Ayurvedic product advertisement should not use an unrelated clinical chart or scientific graph in a way that makes consumers believe the study proves the product's efficacy when it does not.

Compliance Trigger:

Scientific references / misleading charts / implied efficacy.

Example 5 Cold Away Herbal Product

FTC Source: Health Products Compliance Guidance Example 5

Scenario:

An herbal supplement claims that it boosts the immune system to help maintain a healthy nose and throat during the winter season.

The product is named Cold Away and the advertisement contains images of people sneezing and coughing.

FTC conclusion:

The combination of the product name, images, and wording likely conveys that the product helps prevent colds, even though the advertisement does not expressly say “prevents colds.”

Ayurvedic Application:

An Ayurvedic product called Cold Shield, Flu Guard, or similar, combined with images of viruses, coughing people, or protected individuals, could similarly communicate a disease-prevention claim.

Compliance Trigger:

Product name / imagery / implied disease claim / immune claims.